

22STCP00098 22STCP00098

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Department: 310

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Case Number: 22STCP00098 Hearing Date: July 23, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 23, 2026

Case Name: Albertoni v. LAUSD, et al.

Case No.: 22STCP00098

Matter: Motion to Compel Mental Exam

Moving Party: Defendant LAUSD

Responding Party: Plaintiff Diane Albertoni

Notice: OK

Ruling: The Motion is denied without prejudice.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA

CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On June 20, 2024, Plaintiff Diane Albertoni filed the operative Third Amended Complaint ("TAC"), which alleges what appears to be twelve causes of action for FEHA failure to provide reasonable accommodations and failure to engage in the interactive process against Defendant LAUSD.

Defendant now seeks to compel Plaintiff's mental exam.

This Court has the authority to compel a mental examination of a party. Code of Civil Procedure section 2032.310(a) provides that any party seeking to obtain discovery by a mental examination "shall obtain leave of court." A motion for a mental examination "shall specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination. The motion shall be accompanied by a meet and confer declaration under Section 2016.040." (Id. § 2032.310(b).) Any grant of a motion for a mental examination must be based on "good cause." (Id. § 2032.320(a).) Good cause requires "that the party produce specific facts justifying discovery and that the inquiry be relevant to the subject matter of the action or reasonably calculated to lead to the discovery of admissible evidence." (Vinson v. Superior Court (1987) 43 Cal.3d 833, 840.)

The Court finds that Plaintiff's mental condition is squarely "in controversy" within the meaning of Code of Civil Procedure section 2032.020(a). While Plaintiff correctly cites *Vinson v. Superior Court* (1987) 43 Cal.3d 833 for the proposition that a simple claim for emotional distress or an oppressive work environment does not automatically put a plaintiff's mental state in controversy, Plaintiff here does not merely allege transient "humiliation and embarrassment." In her verified discovery responses, Plaintiff explicitly claimed specific, ongoing clinical mental health injuries, including "Major depression, panic attacks, anxiety, sadness, [and] withdrawal," and noted that the conditions vary daily. Because Plaintiff alleges a specific, severe, and continuing mental injury directly caused by Defendant's conduct, Defendant has demonstrated good cause to test those claims via an independent evaluation.

Despite demonstrating good cause, LAUSD's motion suffers from a fatal procedural defect. Plaintiff rightly objects that Defendant's moving papers fail to specify the precise diagnostic tests and procedures to be employed, running afoul of long-standing California appellate authority. In *Carpenter v. Superior Court* (2006) 141 Cal.App.4th 249, the Court of Appeal held that the trial court must identify the permissible diagnostic tests and procedures by name in its order. This ensures the court has properly weighed the risks of an unwarranted intrusion upon the plaintiff's privacy against the defendant's need for discovery. Critically, *Carpenter* clarified that "the defendant, aware that the court must name the diagnostic tests and procedures in the order granting a mental examination, will identify the potential tests and procedures in its moving papers." (Id. at p. 267). If the moving papers omit this information, the trial court cannot fulfill its legislative mandate, and its duty is to deny the motion (Id. at p. 276, fn. 5).

Here, Defendant's Notice of Motion and Memorandum of Points and Authorities merely seek a generic order compelling Plaintiff "to attend a mental examination." The body of the motion fails to list any specific diagnostic tests or clinical instruments. While Defendant did attach a proposed unexecuted stipulation as Exhibit 3, which lists 27 distinct clinical tests (such as the MMPI, CVLT, and WAIS-IV), attaching a proposed stipulation as an exhibit does not satisfy the requirement that the moving party explicitly demand and justify those tests within its primary moving papers.

By failing to integrate the specified tests into the motion itself, Defendant failed to give proper due process notice to Plaintiff within the moving framework, depriving Plaintiff of a clear opportunity to object to individual tests as overly intrusive or cumulative.

Given that the trial date is set for October 12, 2026, the parties are ordered to engage in a meaningful, verbal dialogue regarding the logistics and parameters of this examination before seeking further court intervention.

The Motion is denied without prejudice.

Moving party to give notice.